Shashi Kant Singh vs State Of U.P. And 5 Others on 7 July, 2021

Author: Rajeev Misra

Bench: Rajeev Misra

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 7

Case :- PUBLIC INTEREST LITIGATION (PIL) No. - 1380 of 2020

Petitioner :- Shashi Kant Singh

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ramesh Chandra Yadav,Sanjeev Kumar Yadav

Counsel for Respondent :- C.S.C.,Bhupendra Kumar Tripathi,Somesh Khare,Sunil Kumar Singh

Hon'ble Rajeev Misra,J.
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Heard Sri Ramesh Chandra Yadav, learned counsel for petitioner and Sri Bhupendra Kuamr Tripathi, learned counsel representing respondent 5, who are available on audio/video link.

Learned Standing Counsel representing respondents 1, 2, 3 and 4 is also available. Sri Somesh Khare, Advocate, who has put in appearance on behalf of respondent 6 is not available on audio/video link.

This writ petition has been filed as Public Interest Litigation for a writ of mandamus commanding respondent 3 to take appropriate action against respondent 6 for removing encroachment upon survey plot no.61 kha area 1.9460 hectare recorded as pond in the revenue records.

Present writ petition came up for admission on 17.12.2020, and this Court passed following order;

"Despite the Sub Divisional Officer, Jamania being communicated, the order dated 14.12.2020, through the Joint Registrar (Compliance) by which learned Standing Counsel was required to seek instructions regarding encroachment over pond comprising Gata No. 61 kha, situate at village Gaighat, Pargana & Tehsil Jamania, District Ghazipur, no instructions have been received by the learned Standing Counsel. Learned Standing Counsel also informs this Court that he has communicated the order of this Court through letter dated 15.12.2020 addressed to the Sub Divisional Officer, Jamania, District Ghazipur but has received no instructions.

In the circumstances, let the Sub Divisional Officer, Jamania, District Ghazipur appear before this Court tomorrow at 02:00 p.m. without fail.

Lay this matter again as fresh tomorrow at 02:00 p.m. Let this order be communicated to the Sub Divisional Officer, Jamania, District Ghazipur through the Chief Judicial Magistrate, Ghazipur by the Joint Registrar (Compliance) forthwith."

Thereafter, the Court passed following order on 18.12.2020.

"Shailendra Pratap, Sub Divisional Officer, Tehsil Zamania District Ghazipur has appeared in person and has explained to this Court's satisfaction the reasons for the earlier non compliance with this Court's direction carried in the order dated 14.12.2020. The explanation offered by the Sub Divisional Magistrate is accepted.

The affidavit of compliance shows that the Officer accepts the fact of encroachment on public land by respondent no. 6 along with three other men,whose names are detailed in paragraph no. 7 of the affidavit. The public land encroached is comprised for Gata No. 61 kha admeasuring 1.946 hectare which is recorded as a pond (talab) under clause 6(1) in the khatauni of Fasli year 1427-1432. The extract of that khatauni has been appended to that affidavit. The action taken for removal of encroachment is far from satisfactory. All that is done is that an FIR being Case Crime No. 212 of 2014 has been lodged under Sections2, 3 and 5 of the Uttar Pradesh Public Premises (Eviction of Unauthorized Occupants) Act. On the basis of the FIR, a charge sheet has been filed. A criminal case is pending against the encroachers before the learned Chief Judicial Magistrate, Ghazipur. The fact is despite the criminal prosecution pending against the encroachers, prima facie they are making merry on the encroached land of a public pond. The action taken does little service to the cause that has been brought before this Court. What is required is, the removal of encroachment.

Shailendra Pratap, SDM, Zamania, Ghazipur undertakes before this Court that he will cause the land of pond in unlawful occupation of respondent no. 6 to be vacated within fifteen days next.

> It is made clear that this encroachment will be removed from the pond (talab) land without fail, unless there is a judicial order of a Court of competent jurisdiction, protecting the possession of those who are claimed to be encroachers. This Court believes, going by the records, that there is no such order.
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> Lay this matter as fresh again on 12.01.2021.
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> Personal presence of Shailendra Pratap, Sub Divisional Officer, Tehsil Zamania, District Ghazipur is exempted."

Pursuant to the aforesaid orders, counter affidavit has been filed by respondents 2, 3 and 4. Rejoinder affidavit has also been filed by petitioner.

At the very outset, learned Standing Counsel submits that in case of unauthorised occupation or encroachment over Gaon Sabha land, remedy lies to aggrieved person by moving an application/representation before competent authority for eviction of unauthorised occupants or for removal of encroachments made over Gaon Sabha land, in terms of Section 67 of U.P. Revenue Code, 2006. Petitioner has directly approached this Court without making any application before competent authority i.e. Assistant Collector/ Tehsildar to take appropriate action regarding the land in dispute in terms of Section 67 of U.P. Revenue Code, 2006.

Having heard learned counsel for petitioner, learned Standing Counsel and Mr. Bhupendra Kumar Tripathi, learned counsel representing respondent 5, this Court is of the view that no useful purpose shall be served by keeping this writ petition pending.

Accordingly, this writ petition is disposed of finally with a direction to petitioner to file a representation/ application in terms of Section 67 of U.P. Revenue Code, 2006 before respondent 4, Tehsildar, Tehsil Jamania, District Ghazipur for redressal of the grievances raised in present writ petition. Respondent 4 shall proceed to decide the same for the purpose whether proceedings under Section 67 of U.P. Revenue Code, 2006 are required to be initiated or not within a period of three months from the date of production of a certified copy/ computer generated copy of this order which shall be filed by petitioner by means of a notary affidavit.

Order Date :- 7.7.2021 A.Kr.